By the early 1980s, petitions began to be filed in the Supreme Court and the Gauhati High Court (which at the time was the only high court for the seven states in the Northeast). Some of these petitions challenged the decisions of the government to notify areas as 'disturbed', while others challenged the constitutional validity of the AFSPA itself. Among the petitioners in the high court was Indrajit Barua, a civil engineer and alumnus of the Indian Institute of Technology Kharagpur.[10]

When Barua's petition arose for hearing at the Gauhati High Court in 1980, Justice B.L. Hansaria made the courageous decision of ordering a stay on the enforcement of Section 4(a) of the AFSPA, the 'licence to kill' section. This set the cat among the pigeons. The Congress government at the centre, together with the Assam state government, approached the Supreme Court asking that Barua's petition (together with a group of similar petitions) be transferred out of Gauhati. They argued that agitations and protests were taking place across the state, that the Assam Judicial Officers' Association had resolved to support the agitations, and therefore the atmosphere in the state was not conducive to a fair trial.[11] Tactically, the central and state governments would have conceived of their prospects of success as far more favourable in the distant Delhi High Court than in a court that was nearer the epicentre of the insurgency.

The petition filed by the central and state governments was first heard out of term, that is, when the Supreme Court was in recess. Justice Kailasam, the 'vacation judge' (the judge of the Supreme Court who is tasked with hearing cases while the court is in recess), stayed proceedings in the Gauhati High Court until the Supreme Court could decide the case during term time.[12] Upon hearing the case during term time, the Supreme Court agreed to transfer the petitions from the Gauhati High Court to the Delhi High Court. The Supreme Court arrived at this decision despite the arguments of leading senior advocate Dr Y.S. Chitale that a tense atmosphere may have an impact on the investigation – but not the adjudication – of a case.[13] The court also emphasized the administrative convenience for the government of the petitions being heard in Delhi as opposed to Gauhati. This logic was criticized by scholars as it implied that